

HOUSE No. 20

So much of the recommendations of the Public Employee Retirement Administration
Commission (House, No. 18) as relates to post retirement earnings

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to post retirement earnings.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority
of the same, as follows:*

1 Section 1. Paragraph (b) of Section 91 of Chapter 32 as most recently amended by
2 chapter 141 of the Acts of 2024 is hereby amended by striking everything after the phrase
3 “whichever is greater” and inserting “provided however that after one entire calendar year has
4 elapsed, such earnings, in any calendar year, when added to any pension or retirement allowance
5 he is receiving, may include an additional \$15,000.”

6 Section 2. Paragraph (c) of Section 91 of chapter 32 of the general laws, as appearing in
7 the 2022 Official edition, is hereby amended in line 118 by adding:

8 In the event that any excess is not recovered by the appropriate treasurer or other person
9 responsible for the payment of the compensation, the retirement board of which the member is a
10 retiree may recover an amount equal to the overearnings, but in no event shall such amount
11 exceed the amount of the retirement allowance paid in the year in which the overearnings
12 occurred.